

Har Kishan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 January 2023 · WRIT - C No. 37990 of 2022 · **Writ withdrawn with liberty to avail Electricity Act, 2003 and Supply Code, 2005 remedies.**

HEADNOTE

The Allahabad High Court disposed of Har Kishan's writ as withdrawn. After brief submissions the petitioner sought withdrawal with liberty to pursue remedies under the Electricity Act, 2003 and the Electricity Supply Code, 2005. Counsel for the electricity department did not object. The Court allowed the prayer and granted that liberty. No Supply Code or Act question was decided on the merits.

FACTUAL SUMMARY

Har Kishan invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and three others. The electricity department appeared through counsel. After making brief submissions, the petitioner's counsel asked to withdraw the petition, seeking liberty to pursue remedies under the Electricity Act, 2003 and the Electricity Supply Code, 2005. Counsel for the electricity department had no objection to that prayer.

HOLDING-UNITS

INTERPLAY · EA2003

withdrawal with liberty to Act and Supply Code remedies

HOLDING

On the petitioner's prayer, and without objection from the electricity department, the writ petition was disposed of as withdrawn with liberty to avail the remedies provided under the Electricity Act, 2003 and the Electricity Supply Code, 2005. The Court did not examine the merits of the electricity dispute. ¶ 1

PRINCIPLE TAGS

writ-withdrawn-liberty-to-ea2003-and-up-2005-remedies

Where the consumer prays to withdraw an Article 226 petition and the licensee does not object, the Court may dispose of the writ as withdrawn with liberty to pursue remedies under the Electricity Act, 2003 and the Electricity Supply Code, 2005, without deciding the underlying supply dispute. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

Petition withdrawn; no adjudication under the Electricity Act, 2003 or the Electricity Supply Code, 2005. ¶ 1